

Motion to Compel, Memorandum, Item-Specific Requests, and Conference Certification

United States District Court for the Eastern District of North Carolina

Rhea Calder v. Cinder Lake Health Network, Inc.

Civil Action No. SYN-EDNC-25-CV-0882

Docket Entry 22 — Filed February 16, 2026

Plaintiff Rhea Calder moves under Federal Rule of Civil Procedure 37 to compel Cinder Lake Health Network, Inc. to produce investigation materials withheld in response to Requests for Production 12 through 14. Calder contends that Cinder Lake's August 21, 2025 compliance response intentionally disclosed investigation conclusions and remediation, making undisclosed materials on the same subject necessary for fairness.

The motion presents Calder's advocacy, not a finding. It seeks both specific materials and a broader related-discovery ruling. Cinder Lake disputes waiver and maintains document-specific privilege and work-product claims.

Relevant Background

Calder reported suspected federal-program billing discrepancies in June 2025. Cinder Lake retained outside counsel in July, completed a review, and sent the August 21 response to a fictional oversight office. The response said counsel reviewed Calder's reports, announced general conclusions, and described remedial measures.

Calder filed this retaliation action in December. The parties adopted a prospective Rule 502(d) order on January 9. Cinder Lake later produced ordinary records, exchanged a public redacted memorandum on January 29, and stated that a complete memorandum and related communications remained protected.

Conference History

On January 23, Calder asked Cinder Lake to reconsider protection for the complete memorandum and related files. The parties conferred January 27. Cinder Lake then exchanged the public memorandum counterpart and an offline complete copy under protective handling on January 29 so the claim could be evaluated without public disclosure.

After Cinder Lake exchanged its privilege log on February 5, counsel conferred February 9 and 12. Calder narrowed several custodial requests but maintained that the August 21 letter caused subject-matter waiver. The parties could not resolve Requests 12 through 14.

Governing Discovery Standards

Rule 26 permits discovery of relevant, proportional, nonprivileged matter. Rule 26(b)(3) protects qualifying trial-preparation material subject to its standards, and Rule 26(b)(5) supplies a process for privilege claims. Rule 37 permits a motion after a good-faith conference.

Federal Rule of Evidence 502(a) addresses the scope of waiver from an intentional disclosure in a federal proceeding or to a federal office or agency. Calder contends its fairness principles reach undisclosed communications on the same subject when selective disclosure would create a misleading account.

The August 21 Letter as the Asserted Disclosure

The letter states that outside counsel reviewed Calder's reports, that Cinder Lake found control weaknesses warranting correction, that the review did not substantiate a systemic knowing-submission practice, and that Cinder Lake adopted three remedial measures.

Calder acknowledges the letter does not quote counsel. She argues, however, that attributing the review to counsel and announcing a conclusion necessarily communicates the gist of counsel's assessment. Cinder Lake responds that the statements are corporate conclusions and conduct, not a privileged communication.

Intentionality

There is no dispute that Cinder Lake intentionally sent the August 21 response to the fictional federal oversight office. Calder therefore argues the disclosure was deliberate within Rule 502(a)'s framework. She contends the organization chose to gain credibility by referencing outside counsel.

Cinder Lake counters that intentional transmission is not enough: the intentionally transmitted information must itself be privileged before subject-matter scope is considered. Calder asks the Court to infer privileged content from the relationship among review, conclusion, and remediation.

Same Subject Matter

Calder defines the subject as the truth of her federal-program reports, Cinder Lake's assessment of them, and the reasons for remediation. She contends the complete memorandum, interview communications, drafts, and advice all address that unified subject.

The request is categorical at this stage. Calder argues item-by-item review would allow Cinder Lake to present favorable conclusions while withholding unfavorable context. Cinder Lake says the proposed subject is too broad and collapses underlying facts, protected communications, and work product into one topic.

Fairness Argument

Calder asserts that Cinder Lake may use the August 21 response to show a responsible investigation and nonretaliatory intent. She argues fairness requires access to material needed to test whether the public account was accurate and complete.

Cinder Lake has stated it will not use undisclosed legal advice as a defense. Calder nevertheless contends that the letter already placed counsel's review into the narrative. The Court must decide whether that reference, without quoted or summarized advice, is an actual privileged disclosure.

Request for Production 12 — Complete Memorandum

Request 12 seeks the complete outside-counsel investigation memorandum, including its factual synthesis, legal analysis, and recommendations. Calder argues the public counterpart cannot reveal whether the announced conclusion fairly represented the review.

Cinder Lake produced ordinary sources and the public category-preserving counterpart but withheld the complete memorandum as a confidential attorney communication and opinion work product. Calder asks the Court to compel the whole document, not merely a factual severance.

Request for Production 13 — Source Communications

Request 13 seeks interview memoranda, notes, and communications used in the investigation. Calder argues those materials show what Cinder Lake knew before the August 21 response and before the employment decisions.

Cinder Lake responds that Calder may depose witnesses about firsthand facts and obtain ordinary documents, while counsel's questions, confidential communications, selections, and impressions remain protected. Calder asks for the entire source-communication category based on asserted subject-matter waiver.

Request for Production 14 — Drafts, Advice, and Remediation Materials

Request 14 seeks memorandum drafts, requests for advice, litigation assessments, and communications concerning remedial measures. Calder contends draft changes and advice may reveal whether Cinder Lake selectively announced only favorable conclusions.

Cinder Lake distinguishes public implementation records from confidential advice about legal design and significance. It has offered to produce final policies, training records, and monitoring data, but not counsel's draft analysis or litigation strategy.

Work Product and Substantial Need

Calder alternatively argues substantial need for factual work product because witnesses' memories may have changed and counsel's contemporaneous materials captured the review. She does not claim entitlement to pure mental impressions independent of waiver.

Cinder Lake argues Calder can obtain the substantial equivalent through her own reports, ordinary records, and witness discovery. It also contends the request expressly targets counsel's organization and analysis, making the asserted need inseparable from opinion work product.

Related Discovery and Requested Order

Beyond Requests 12 through 14, Calder asks the Court to preclude Cinder Lake from invoking privilege as to any communication concerning the investigation's conclusions or remediation. She says a subject-wide ruling will avoid repeated motions.

Calder requests production within seven days, continuation of confidentiality protections, and fees only if the Court finds an award appropriate. Cinder Lake objects that a blanket future ruling would bypass document-specific relevance, privilege, work-product, proportionality, and motion-to-compel analysis.

Certification and Signature

Nina Ashe certifies that counsel conferred in good faith on January 27, February 9, and February 12, 2026. The parties narrowed ordinary-source requests but remained divided over actual disclosure, waiver scope, and work product.

Submitted February 16, 2026 for Rhea Calder. The requested seven-day period is Calder's proposal only; no production deadline exists unless the Court orders one. All exhibits and communications in this filing are fictional.